ANNEXE 1 Licence d'Exploitation du Package API de lecture Vitale®

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Sécurité : **DIFFUSION RESTREINTE**

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Etant préalablement rappelé que :

- dans le cadre des missions le GIE SESAM-Vitale a élaboré le Package API de lecture Vitale. Ce package, qui offre des fonctions de lecture de la carte Vitale, constitue un module logiciel (API en C) conçu pour être intégré à un progiciel de santé permettant de lire la carte Vitale.
- l'Éditeur s'est déclaré intéressé par le développement d'un logiciel de lecture de carte Vitale donc par la mise à disposition, pour intégration à son produit, du Package API lecture Vitale.
- en signant le « Protocole de référencement des applications intégrant le package API de lecture Vitale » l'Éditeur accepte sans réserve les termes et conditions de la présente licence ci-après dénommée la Licence.

1 OBJET

La Licence a pour objet d'accorder à l'Éditeur, qui accepte, une licence d'exploitation non exclusive, non transmissible et à titre gracieux du Package API de lecture Vitale dans les conditions indiquées ci-après.

Le package API de lecture comprend les éléments listés en annexe a de la Licence.

En qualité de détenteur des droits de propriété intellectuelle sur les éléments soumis à la Licence, le GIE SESAM-Vitale peut décider de modifier unilatéralement les conditions d'exploitation desdits éléments.

2 DUREE

La Licence annule et remplace la « Convention de mise à disposition du Package API de Lecture Vitale, du Package GALSS et du Package CryptoLib CPS » éventuellement conclue par l'Éditeur.

La Licence prend effet à compter de la signature du Protocole de référencement des applications intégrant le package API de lecture Vitale par l'Éditeur, pour une durée égale à la durée dudit Protocole.

Par conséquent, la Licence prend fin en même temps que le Protocole précité et ce, quelle qu'en soit la cause.

3 ELEMENTS TRANSMIS

La mise à disposition du Package API de lecture Vitale est subordonnée à la signature, par l'Éditeur, du Protocole de référencement des applications intégrant le package API de Lecture Vitale dont la Licence constitue l'annexe 1.

Les éléments listés en annexe a de la Licence, qui constituent le Package API de lecture sont transmis à l'Éditeur pour les environnements supportés par le GIE SESAM-Vitale par téléchargement sur l'Espace web sécurisé du GIE SESAM-Vitale mis à sa disposition. Pour se faire l'Éditeur doit avoir conclu, avec le GIE SESAM-Vitale, un contrat d'accès à cet espace (voir site internet du GIE SESAM-Vitale rubrique contact - www.sesam-vitale.fr).

La liste des éléments composant le Package API de lecture Vitale pouvant évoluer en fonction de la technique et/ou des évolutions réglementaires, elle peut être mise à jour sans que cela nécessite la rédaction d'un avenant aux présentes. Cette liste est accessible sur l'Espace Web sécurisé précité. Elle s'impose à l'Éditeur qui doit se connecter régulièrement à cet espace afin de vérifier le dernier état de la liste.

Origine de propriété des éléments du Package API de lecture Vitale :

Les éléments du package appartiennent

- soit au GIE SESAM-Vitale pour les API de lecture Vitale, la documentation associée et les autres éléments cités dans l'annexe ;

- soit à l'ASIP Santé pour la Cryptolib CPS

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- soit au GIE SESAM-Vitale et à l'ASIP Santé pour le GALSS et la documentation associée ;

Sous réserve des droits de propriété préexistants des auteurs et/ou contributeurs des projets pour les programmes intégrés au GALSS et aux API de lecture et ci-après énumérées :

- Le programme **« Log4c »** développé par Meiosys http://www.meiosys.com et Cedric Le Goater et distribué sous la licence LGPL V3 (figurant en annexe b des présentes).
- Le programme « pthread » développé par le collectif John E. Bossom et win32 contributors et distribué sous licence LGPL v2.1 (figurant en annexe b des présentes).
- le programme « **OpenSSL**» développé par The OpenSSL Project et Eric Young et distribué sous les licences OpenSSL et ORIGINAL SSLeay (figurant en annexe b des présentes).
- le ou les programmes libres intégrés à la Cryptolib.

Le GIE SESAM-Vitale détient de l'ASIP Santé le droit de soumettre la mise à disposition des éléments lui appartenant à la présente licence.

Par la présente, l'Éditeur s'engage à faire mention de ces droits de propriété dans les documents transmis à ses clients (notamment : utilisateurs finaux et/ou réseau de distribution de l'Éditeur du logiciel utilisant le Package Api de lecture Vitale). Il s'engage à leur indiquer qu'ils n'ont aucun droit de propriété sur ces éléments.

En conséquence, les clients de l'Éditeur ne peuvent reproduire, intégrer, étudier, analyser lesdits éléments sous peine d'être attraits devant les tribunaux français pour contrefaçon notamment.

Les éléments du Package API de lecture Vitale (ou « Package API de lecture Vitale ») sont transmis à l'Éditeur en leur état de développement sans garantie. Le GIE SESAM-Vitale ne peut assurer que lesdits éléments transmis fonctionnent sans bugs. Ce qu'accepte l'Éditeur par les présentes.

Enfin et concernant particulièrement la JNA et son code source associé ; cet élément est mis à disposition de l'Éditeur dans le seul but de l'aider à réaliser le développement de son produit. L'Éditeur est averti que cet élément ne fera l'objet d'aucun support de la part du GIE SESAM-Vitale.

4 CONTENU DE LA LICENCE D'EXPLOITATION

4.1 Mise en garde et non garantie

4.1.1 Généralités

Il appartient à l'Éditeur de s'assurer :

- qu'il dispose de la compétence, notamment technique, humaine et matérielle nécessaire pour exploiter le Package API de lecture Vitale dans le cadre de la Licence ;
- que son organisation, notamment son personnel, est susceptible d'exploiter avec toute l'efficacité et la sécurité requises le Package API de lecture Vitale.

En tout état de cause, l'exploitation du Package API de lecture Vitale s'effectue sous les seuls contrôles, directions et responsabilités de l'Éditeur.

De même, l'intégration, s'il y a lieu, du Package API de lecture Vitale à un logiciel, s'effectuent sous les seuls contrôles, directions et responsabilités de l'Éditeur.

Dans l'hypothèse où l'Éditeur découvrirait dans le Package API de lecture Vitale livré une anomalie, il a l'obligation d'en informer immédiatement et exclusivement le GIE SESAM-Vitale.

Le GIE SESAM-Vitale conserve, de manière exclusive, le droit d'apporter des corrections aux éléments du Package API de lecture Vitale.

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4.1.2 Règlementation concernant la protection des données personnelles

L'exploitation du Package API de lecture Vitale par l'Éditeur, telle que prévue dans la Licence et la documentation transmise, ne fait pas obstacle au développement par celui-ci d'un logiciel utilisant le Package API de lecture, conforme à la règlementation concernant la protection des données personnelles en vigueur.

L'assurance précitée concernant le Package API de lecture Vitale dans le contexte Informatique et Libertés ne préjuge en rien de la conformité à la règlementation protégeant les données personnelles du logiciel utilisant le Package API de lecture Vitale développé par l'Éditeur qui ne saurait s'en prévaloir auprès de sa clientèle.

La conformité à la Règlementation protégeant les données personnelles du logiciel utilisant le Package API de lecture Vitale développé et/ou distribué par l'Éditeur relève de son entière et exclusive responsabilité.

La responsabilité du GIE SESAM-Vitale ne saurait être engagée de quelconque manière dans ce contexte.

4.2 Droits accordés

La Licence accordée aux présentes comprend le droit de :

- Reproduire les éléments du Package API de lecture Vitale, les intégrer s'il y a lieu,
- De les mettre sur le marché par tout procédé (excepté le logiciel d'exploitation des Api de Lecture Vitale et la JNA et son code source qui ne servent que pour le développement du produit).

dans les conditions indiquées aux présentes et uniquement dans le cadre de l'équipement des hôpitaux et cliniques privées ou acteurs du monde de la santé aux seules fins de les intégrer dans un système informatique dédié « a minima » à la lecture des informations contenues dans les cartes d'assurance maladie Vitale des assurés sociaux. Le Package API de lecture Vitale ne peut être exploité que dans le cadre défini dans la Fiche d'identification Produit associée au Protocole de référencement des applications intégrant le Package API de lecture Vitale.

Les droits susvisés sont octroyés pour une durée égale à la durée de la Licence, sur tout le territoire de l'Union Européenne.

L'exploitation du Package API de lecture Vitale par l'Éditeur s'effectue sous son entière responsabilité.

Le Package API de lecture Vitale doit être exploité :

- Conformément aux stipulations de la Licence ;
- Conformément à sa destination ;
- Avec soin en respectant les recommandations d'installation et d'usage décrites dans les manuels associés ;
- Pour les seuls besoins de l'Éditeur ;
- Par les seuls membres de son personnel (à l'exclusion de tout stagiaire).

Toute utilisation non expressément autorisée par le GIE SESAM-Vitale au titre des présentes est considérée comme illicite conformément aux dispositions de l'article L 122-4 du Code de la propriété intellectuelle.

Ainsi, il est notamment interdit à l'Éditeur de procéder à :

- toute forme d'utilisation du Package API de lecture Vitale de quelque façon que ce soit aux fins de conception, réalisation, diffusion ou commercialisation d'éléments similaires, équivalents ou de substitution ;
- toute modification du Package API de lecture Vitale ;

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- toute divulgation à un tiers d'une quelconque information concernant le Package API de lecture Vitale transmis (soit le Package lui-même soit une information sur la découverte d'une quelconque anomalie) ;
- en dehors des clients utilisant les logiciels utilisant le Package API de lecture Vitale de l'Éditeur et/ou des distributeurs, revendeurs des logiciels métiers de l'Éditeur utilisant certains éléments du Package API de lecture Vitale, toute mise à disposition directe ou indirecte de tout ou partie des éléments du package au bénéfice d'un tiers, notamment par location, cession, prêt est interdite, sauf autorisation écrite du GIE SESAM-Vitale. L'Éditeur s'engage à faire respecter les stipulations de la Licence à ses éventuels sous-traitants distributeurs, revendeurs des logiciels utilisant le Package API de lecture Vitale de l'Éditeur.

La Licence est retirée à l'Éditeur dans les cas visés à l'article « Résiliation » ci-dessous. Ce retrait n'engage aucunement la responsabilité du GIE SESAM-Vitale.

5 SUPPORT

A réception des éléments du package, et pour toute la durée de la Licence, l'Éditeur bénéficie d'un support fourni par le GIE SESAM-Vitale sur le Package API de lecture Vitale, excepté pour la JNA et son code source (cf article 4 ci-dessus).

Le périmètre de ce support est limité à l'intégration des éléments du Package dans les moyens de l'Éditeur pour le développement des logiciels utilisant les API de lecture Vitale.

A cet effet le GIE SESAM-Vitale a mis en place une adresse de messagerie électronique centre-de-service@sesam-vitale.fr sur laquelle l'Éditeur doit soumettre ses demandes de support ainsi qu'une hot-line téléphonique dont le numéro est 02 43 57 42 88.

En aucun cas, le service d'assistance technique ne saurait constituer une assistance au support des clients de l'Éditeur relevant exclusivement de la responsabilité de l'Éditeur.

Le GIE SESAM-Vitale se réserve la faculté de refuser toute demande de support de l'Éditeur dès lors que cette demande :

- S'inscrit en dehors du périmètre de l'assistance technique présenté ci-dessus,
- Présente un caractère récurrent, fantaisiste ou abusif.

6 CONFIDENTALITE

En dehors des droits conférés par la Licence, l'Éditeur s'interdit de communiquer à quiconque, directement ou indirectement, tout ou partie des informations de toute nature, commerciale, industrielle, financière, nominative, etc., qui lui ont été communiquées par le GIE SESAM-Vitale, ou dont elle aurait eu connaissance à l'occasion de l'exécution de la Licence.

L'Éditeur reconnaît que toute divulgation léserait les intérêts du GIE SESAM-Vitale et engagerait sa responsabilité.

L'Éditeur s'engage conformément aux articles 1204 et 1242 du Code civil, au respect par ses préposés, mandataires ou sous-traitants dûment autorisés, de l'engagement de confidentialité exposé ci-dessus.

Au sein de sa société ou organisme, l'Éditeur ne donne accès aux informations précitées qu'aux salariés ayant à en connaître.

En cas de violation de l'obligation de confidentialité, outre la résiliation du Protocole de référencement, l'Éditeur s'expose à des indemnités, qui sont fixées par le tribunal compétent au regard notamment de la violation des dispositions légales applicables au secret des affaires.

La restitution des éléments transmis ou la résiliation même du Protocole de référencement et par conséquent de la Licence, n'a pas pour effet de lever l'obligation de confidentialité à laquelle est tenu l'Éditeur.

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7 RESPONSABILITE

L'Éditeur est seul responsable du développement et de la distribution de son produit utilisant le Package API de lecture Vitale auprès de ses clients. La responsabilité du GIE SESAM-Vitale, ou de l'un des propriétaires des éléments du Package API de lecture Vitale, ne saurait être engagée en cas de dysfonctionnements dudit produit.

Par ailleurs, en aucun cas le GIE SESAM-Vitale n'est responsable :

- de la non-conformité à la règlementation concernant la protection des données personnelles en vigueur, du produit utilisant le Package API de lecture Vitale de l'Éditeur ;
- des dommages indirects tels que trouble commercial quelconque, perte de bénéfices, perte d'image de marque subi par l'Éditeur ou par un tiers, qui pourrait résulter de l'exécution de la Licence.

8 ASSURANCES

L'Éditeur déclare être assuré pour sa responsabilité civile professionnelle auprès d'une compagnie notoirement solvable concernant l'ensemble des activités relatives à la Licence.

L'Éditeur s'engage à maintenir en vigueur son contrat d'assurance pour toutes les conséquences pécuniaires de sa responsabilité civile professionnelle, délictuelle et/ou contractuelle du fait de dommages directs causés au GIE SESAM-Vitale et à tout tiers dans le cadre de l'exécution de la Licence.

Les franchises éventuellement prévues par les contrats d'assurance souscrits par l'Éditeur restent totalement à sa charge.

9 NULLITE

Si une ou plusieurs stipulations des présentes sont tenues pour non valides ou déclarées telles en application d'une loi, d'un règlement ou à la suite d'une décision définitive d'une juridiction compétente, les autres stipulations garderont toute force et leur portée.

10 TITRE

En cas de difficulté d'interprétation entre l'un quelconque des titres figurant en tête des clauses et l'une quelconque des clauses, les titres seront déclarés inexistants.

11 ANNEXES

La Licence comporte les annexes suivantes :

- l'annexe a : Liste des éléments du Package API de lecture Vitale
- l'annexe b : Liste des programmes opensource intégrés aux éléments du Package API de lecture Vitale

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ANNEXE a : LISTE DES ELEMENTS OBJET DE LA LICENCE D'EXPLOITATION DU PACKAGE API DE LECTURE VITALE

- Les Api de Lecture Vitale développées par le GIE SESAM-Vitale qui en est propriétaire
- Le logiciel d'exploitation des Api de Lecture Vitale
- La JNA et son code source
- Les tables d'exploitation
- Un installeur
- Le GALSS (Gestionnaire d'Accès aux Lecteurs Santé Social) développé par l'ASIP Santé et le GIE SESAM-Vitale qui en sont copropriétaires ;
- La CRYPTOLIB CPS développée par l'ASIP Santé qui en est propriétaire
- La documentation associée aux éléments susvisés

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ANNEXE b : LICENCES DES PROGRAMMES OPENSOURCE INTEGRÉS AUX ÉLÉMENTS DU PACKAGE API DE LECTURE VITALE

LICENCE GNU LESSER GENERAL PUBLIC LISENSE Version 2.1

Version 2.1, February 1999

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[This is the first released version of the Lesser GPL. It also counts as the successor of the GNU Library Public License, version 2, hence the version number 2.1.]

PREAMBLE

The licenses for most software are designed to take away your freedom to share and change it. By contrast, the GNU General Public Licenses are intended to guarantee your freedom to share and change free software--to make sure the software is free for all its users.

This license, the Lesser General Public License, applies to some specially designated software packages--typically libraries--of the Free Software Foundation and other authors who decide to use it. You can use it too, but we suggest you first think carefully about whether this license or the ordinary General Public License is the better strategy to use in any particular case, based on the explanations below.

When we speak of free software, we are referring to freedom of use, not price. Our General Public Licenses are designed to make sure that you have the freedom to distribute copies of free software (and charge for this service if you wish); that you receive source code or can get it if you want it; that you can change the software and use pieces of it in new free programs; and that you are informed that you can do these things.

To protect your rights, we need to make restrictions that forbid distributors to deny you these rights or to ask you to surrender these rights. These restrictions translate to certain responsibilities for you if you distribute copies of the library or if you modify it.

For example, if you distribute copies of the library, whether gratis or for a fee, you must give the recipients all the rights that we gave you. You must make sure that they, too, receive or can get the source code. If you link other code with the library, you must provide complete object files to the recipients, so that they can relink them with the library after making changes to the library and recompiling it. And you must show them these terms so they know their rights.

We protect your rights with a two-step method: (1) we copyright the library, and (2) we offer you this license, which gives you legal permission to copy, distribute and/or modify the library.

To protect each distributor, we want to make it very clear that there is no warranty for the free library. Also, if the library is modified by someone else and passed on, the recipients should know that what they have is not the original version, so that the original author's reputation will not be affected by problems that might be introduced by others.

Finally, software patents pose a constant threat to the existence of any free program. We wish to make sure that a company cannot effectively restrict the users of a free program by obtaining a restrictive license from a patent holder. Therefore, we insist that any patent license obtained for a version of the library must be consistent with the full freedom of use specified in this license.

Most GNU software, including some libraries, is covered by the ordinary GNU General Public License. This license, the GNU Lesser General Public License, applies to certain designated libraries, and is quite different from the ordinary General Public License. We use this license for certain libraries in order to permit linking those libraries into non-free programs.

When a program is linked with a library, whether statically or using a shared library, the combination of the two is legally speaking a combined work, a derivative of the original library. The ordinary General Public License

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therefore permits such linking only if the entire combination fits its criteria of freedom. The Lesser General Public License permits more lax criteria for linking other code with the library.

We call this license the "Lesser" General Public License because it does Less to protect the user's freedom than the ordinary General Public License. It also provides other free software developers Less of an advantage over competing non-free programs. These disadvantages are the reason we use the ordinary General Public License for many libraries. However, the Lesser license provides advantages in certain special circumstances.

For example, on rare occasions, there may be a special need to encourage the widest possible use of a certain library, so that it becomes a de-facto standard. To achieve this, non-free programs must be allowed to use the library. A more frequent case is that a free library does the same job as widely used non-free libraries. In this case, there is little to gain by limiting the free library to free software only, so we use the Lesser General Public License.

In other cases, permission to use a particular library in non-free programs enables a greater number of people to use a large body of free software. For example, permission to use the GNU C Library in non-free programs enables many more people to use the whole GNU operating system, as well as its variant, the GNU/Linux operating system.

Although the Lesser General Public License is Less protective of the users' freedom, it does ensure that the user of a program that is linked with the Library has the freedom and the wherewithal to run that program using a modified version of the Library.

The precise terms and conditions for copying, distribution and modification follow. Pay close attention to the difference between a "work based on the library" and a "work that uses the library". The former contains code derived from the library, whereas the latter must be combined with the library in order to run.

TERMS AND CONDITIONS FOR COPYING, DISTRIBUTION AND MODIFICATION

0. This License Agreement applies to any software library or other program which contains a notice placed by the copyright holder or other authorized party saying it may be distributed under the terms of this Lesser General Public License (also called "this License"). Each licensee is addressed as "you".

A "library" means a collection of software functions and/or data prepared so as to be conveniently linked with application programs (which use some of those functions and data) to form executables.

The "Library", below, refers to any such software library or work which has been distributed under these terms. A "work based on the Library" means either the Library or any derivative work under copyright law: that is to say, a work containing the Library or a portion of it, either verbatim or with modifications and/or translated straightforwardly into another language. (Hereinafter, translation is included without limitation in the term "modification".)

"Source code" for a work means the preferred form of the work for making modifications to it. For a library, complete source code means all the source code for all modules it contains, plus any associated interface definition files, plus the scripts used to control compilation and installation of the library.

Activities other than copying, distribution and modification are not covered by this License; they are outside its scope. The act of running a program using the Library is not restricted, and output from such a program is covered only if its contents constitute a work based on the Library (independent of the use of the Library in a tool for writing it). Whether that is true depends on what the Library does and what the program that uses the Library does.

1. You may copy and distribute verbatim copies of the Library's complete source code as you receive it, in any medium, provided that you conspicuously and appropriately publish on each copy an appropriate copyright notice and disclaimer of warranty; keep intact all the notices that refer to this License and to the absence of any warranty; and distribute a copy of this License along with the Library.

You may charge a fee for the physical act of transferring a copy, and you may at your option offer warranty protection in exchange for a fee.

2. You may modify your copy or copies of the Library or any portion of it, thus forming a work based on the Library, and copy and distribute such modifications or work under the terms of Section 1 above, provided that you also meet all of these conditions:

- **a)** The modified work must itself be a software library.

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- **b)** You must cause the files modified to carry prominent notices stating that you changed the files and the date of any change.
- **c)** You must cause the whole of the work to be licensed at no charge to all third parties under the terms of this License.
- **d)** If a facility in the modified Library refers to a function or a table of data to be supplied by an application program that uses the facility, other than as an argument passed when the facility is invoked, then you must make a good faith effort to ensure that, in the event an application does not supply such function or table, the facility still operates, and performs whatever part of its purpose remains meaningful.

  (For example, a function in a library to compute square roots has a purpose that is entirely well-defined independent of the application. Therefore, Subsection 2d requires that any application-supplied function or table used by this function must be optional: if the application does not supply it, the square root function must still compute square roots.)

These requirements apply to the modified work as a whole. If identifiable sections of that work are not derived from the Library, and can be reasonably considered independent and separate works in themselves, then this License, and its terms, do not apply to those sections when you distribute them as separate works. But when you distribute the same sections as part of a whole which is a work based on the Library, the distribution of the whole must be on the terms of this License, whose permissions for other licensees extend to the entire whole, and thus to each and every part regardless of who wrote it.

Thus, it is not the intent of this section to claim rights or contest your rights to work written entirely by you; rather, the intent is to exercise the right to control the distribution of derivative or collective works based on the Library.

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